jurisdiction." The judicial act thus organizes the jurisdiction delineated by the constitution. "The supreme court shall have exclusive jurisdiction of all controversies of a civil nature, where a state is a party, except between a state and its citizens; and except, also, between a state and citizens of other states and aliens, in which latter case it shall have original, but not exclusive jurisdiction." Upon this basis we contend: 1st. That the constitution vests a jurisdiction in the supreme court over a state, as a defendant, at the suit of a private citizen of another state. 2d. That the judicial act recognises that jurisdiction.

1st. The constitution vests a jurisdiction in the supreme court over a state, as a defendant, at the suit of a private citizen of another state. Consult the letter of the constitution, or rather the influential words of the clause in question. The judicial power is extended to controversies between a state and citizens of another state. I pass over the word "between," as in no respect indicating who is to be plaintiff or who defendant. In the succeeding paragraph, we read a comment on these words, when it is said, that in cases in which a state shall be a *party* the supreme court shall have original jurisdiction. Is not a defendant a *party*, as well as a plaintiff? *421] If authority *be necessary for so notorious a definition, recur to 1 Harr. Ch. Pr. p. 35, where it is observed, that "in this court," that is, in the high court of chancery of England, "suits are generally commenced. prosecuted and *defended* by *parties* in their own names only." I might appeal, too, to a work of greater solemnity and of greater obligation; the articles of confederation. In describing the mode by which differences between two or more states shall be adjusted, they speak of a day to be assigned for the appearance of the *parties;* of each *party* alternately striking the names of the persons proposed as judges; of either *party* neglecting to attend; of striking names in behalf of a *party* absent; of any of the *parties* refusing to submit to the authority of the court; and of lodging the sentence among the acts of congress for the security of the *parties* concerned. Human genius might be challenged to restrict these words to a plaintiff state alone. It is, indeed, true, that according to the *order* in which the controversies of a state are mentioned, the state is the first; and from thence it may be argued, that they must be those in which a state is first named, or plaintiff. Nobody denies, that the citizens of a state may sue foreign subjects, or foreign subjects the citizens of a state. And yet, the expression of the constitution is, "between a state or the citizens thereof, and foreign states, citizens or subjects." The order, in this instance, works no difference. In common language, too, it would not violate the substantial idea, if a controversy, said to be between A. B. and C. D., should appear to be between C. D. and A. B. Nay, the opportunity fairly occurs, in two pages of the judicial article, to confine suits to states, as plaintiffs, but they are both neglected, notwithstanding the consciousness which the convention must have possessed, that the words, unqualified, strongly *tended*, at least, to subject states as defendants.

With the advantage of the *letter* on our side, let us now advert to the *spirit* of the constitution, or rather its genuine and necessary interpretation. I am aware of the danger of going into a wide history of the constitution, as a guide of construction; and of the still greater danger of laying any important stress upon the preamble, as explanatory of its powers. I resort, therefore, to the *body* of it; which shows that there may be various actions